

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT, LAHORE.**  
**JUDICIAL DEPARTMENT**

**W.P.No.                      of 2026**  
Muhammad Muzaffar Hussain      **Vs.**      Learned Additional District Judge,  
Pakpattan etc.

| <i>Sr. No. of<br/>order/<br/>proceedings</i> | <i>Date of order/<br/>Proceeding</i> | <i>Order with signature of Judge, and that of<br/>Parties' counsel, where necessary</i> |
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| <b>14.04.2026.</b> | Ch. Asif Wali and Munazza Bukhari, Advocates for petitioners.<br>Mr.Qamar Zaman Qureshi, Additional Advocate General Punjab; Dr. Muhammad Azeem Raja, Syed Ali Allow-u-Din, Malik Ali Raza Khokhar, Syed Imran Ehsan, Ch. Imtiazullah Warraich, Sh. Waseem Ahmed, Aitzaz Aslam Chaudhry, Syed Muhammad Haider Kazmi, Muhammad Abu Bakar Attique, Mirza Shahryar Farhan Baig, Syed Nadeem Anwar Naqvi, Faisal Anwar Minhas, Mian Muhammad Nadeem, Sabahat Riaz, Syed Sabahat Hamdani and Malik Muhammad Zareef, Advocates.<br>Mr.Qamar Hanif Ramay, Assistant Attorney General for Pakistan. |
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**Objection Case/Diary No.48792/2026**

The petitioner, Muhammad Muzaffar Hussain, has filed the titled constitution petition to challenge judgment and decree dated 23.10.2025 (‘impugned decree’) passed in favour of Saba Hayat, respondent No. 3 (‘respondent’) by the learned Senior Civil Judge (Family Division) Pakpattan Sharif (‘Family Court’/ ‘Trial Court’) and order dated 21.01.2026 (‘Impugned order’) passed by the learned Additional District Judge, Pakpattan Sharif (‘Appellate Court’), whereby the appeal filed by the petitioner has been dismissed for non-prosecution.

The office has raised objection to avail proper remedy, which on contest by the petitioner has been placed before this Court for adjudication of the same and is reproduced below:

*“Please avail proper remedy by filing application for restoration before learned Additional District Judge concerned.”*

2. The Appellate Court had dismissed the appeal filed by the petitioner for non-prosecution vide order dated 21.01.2026, which is reproduced below:

*“Case is called. Nobody turned up on behalf of the appellant. Enough court time has been passed. So, this appeal is hereby dismissed for non-prosecution.”*

3. The afore-mentioned order in addition to the decree passed by the Family Court is impugned herein. The learned counsel for the petitioner when confronted that the petitioner has the alternate remedy available to him to challenge the afore-mentioned impugned order passed by the Appellate Court, states that where more than one remedy is available against an order, the petitioner according to the doctrine of election of remedies has a right to select any remedy available to him against the said order and he cannot be forced to seek any particular remedy, if he avails the other. Besides, it is also claimed that as the petitioner has been arrested by the order of the Executing Court during execution proceedings, therefore, the remedy before the Appellate Court is not an adequate remedy and constitutional jurisdiction of this Court has been availed to set aside the impugned decree passed by the Trial Court as well as the orders passed during execution proceedings and claims that in these circumstances resort to remedy before the Appellate Court would not serve the purpose of law.

4. Perusal of the record shows that on 15.06.2024, the respondent filed a suit for recovery of past and

future maintenance allowance, dower and dowry articles and the same was contested by the petitioner and after completion of trial, the same has been partially decreed in favour of the respondent on 23.10.2025 to the extent of maintenance allowance and dowry articles whereas the same has been dismissed to the extent of deferred dower. The petitioner filed an appeal to challenge the same which has been dismissed for non-prosecution. The petitioner has not attempted to get his appeal restored and has directly approached this Court to challenge the said order through resort to constitutional jurisdiction of this Court. The Appellate Court has not yet recorded any finding on the legality of the impugned decree passed by the Family Court and it is settled proposition of law that an appeal is a substantive right that allows a comprehensive review of both facts and law as the entire case reopens before the Appellate Court, wherein after appraisal of evidence available on the record, findings of fact can be recorded which may result in upholding, setting aside or modification of order/judgment of Trial Court whereas this Court in its constitutional jurisdiction which is a discretionary remedy usually limited to question of jurisdiction, legality and enforcement/violation of fundamental rights, in ordinary circumstances, does not reappraise evidence and can only see the legality of the orders passed by the fora below to reach a just conclusion in the matter, hence the scope of remedy before the Appellate Court is broader than the remedy available before this Court through its constitutional jurisdiction. Besides, this Court does not ordinarily entertain constitution petition where adequate alternate remedy is available

to a party before a forum of competent jurisdiction, which is an appeal in the present case before the Appellate Court, which although has been filed but the same has been dismissed for non-prosecution and despite knowledge, remedy of getting the same restored has not yet been availed.

5. Although the learned counsel for the petitioner states that on the doctrine of election of remedies, he has a right to avail any remedy available to him yet this Court while entertaining petition in its constitutional jurisdiction can always look into the matter of availability of alternate remedy and can in its discretion entertain or refuse to entertain a constitution petition due to availability of the alternate remedy and while doing so can look into the adequacy of said remedy and in these circumstances it was not the absolute right of the petitioner to approach this Court for entertaining the constitution petition without requiring him to first have resort to alternate remedy provided by law.

6. In the instant case, as already observed above, the Appellate Court has got jurisdiction under Section 14 of the Family Courts Act, 1964 to adjudicate upon the legality of findings of fact recorded by the Family Court and while doing so, it can reverse, modify or uphold the said findings of fact and comment upon merits of the case and while exercising its appellate jurisdiction it can also pass interim order(s) and the petitioner has remedy to challenge his arrest in execution of the impugned decree before the Appellate Court, therefore, the said remedy cannot be treated as inadequate in the given circumstances of the case. Hence, instead of insisting upon entertainment

of the titled constitution petition, it would be appropriate for the petitioner in the first instance to file an application before the Appellate Court for restoration of his Appeal, which if he files is expected to be decided on its own merits in accordance with law.

7. Be that as it may, without commenting upon the merits of the case, lest it may cause prejudice to any of the parties and in view of what has been discussed above, the office objection is **sustained**.

**(MUZAMIL AKHTAR SHABIR)**  
**JUDGE**

*\*KMSubhani\**

**Approved for reporting**